

Calendar Line 8**Case Name:** Gita Patel v. Sunil Garg et al.**Case No.:** 25CV457167

Motion for approval of attorney fees and costs, filed by defendants Select Portfolio Servicing, Inc.; U.S. Bank Trust National Association, not in its individual capacity but solely as Collateral Trust Trustee of Firstkey Master Funding 2021-A Collateral Trust (erroneously named as “U.S. Bank Trust National Association Collateral Trustee of Firstkey Master Funding 2021-A”); Firstkey Mortgage, LLC; and Randhir Gandhi (collectively, defendants). Notice is proper and the motion is opposed by plaintiff Gita Patel.

Defendants filed their motion in October 2025, requesting \$42,854.50 in attorney fees and \$3,658.85 in costs. That motion is supported by a memorandum of points and authorities; a declaration by counsel with exhibits; and a request for judicial notice. Defendants did not file a memorandum of costs, which is required by California Rules of Court, rule 3.1700(a)(1). The court will not approve any claimed costs. (*Evleshin v. Meyer* (2025) 115 Cal.App.5th 1021, 1047.) Defendants filed an unauthorized “supplemental declaration” of counsel in February 2026 without leave of court, which seeks to add an additional \$46,513.35 to its pending motion for attorney fees and costs (apparently related to attorney fees and costs incurred in a related federal bankruptcy court proceeding). The court will not consider this unauthorized and procedurally improper supplement. The court takes no position on whether those other fees and costs may be added to the loan balance.

The recorded deed of trust between Gita Patel and original lender Countrywide Bank includes two sections relevant to defendants’ motion. Section 9, titled Protection of Lender’s Interest in the Property and Rights Under this Security Instrument provides, in relevant part: “If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender’s interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then *Lender may do and pay for whatever is reasonable or appropriate to protect Lender’s interest in the Property and rights under this Security Instrument*, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. *Lender’s actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this-Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys’ fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. ... [¶] Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument.* These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.” (Defendants’ RJN, filed 10/13/25, exh. 1, italics added.) The court takes judicial notice of the recorded deed of trust and the recorded assignments of deed of trust (exhibits one through four of defendants’ request for judicial notice). (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1; Evid. Code, § 452, subds. (c), (h).)

Section 22 of the deed of trust, titled Acceleration, Remedies, provides in relevant part: “Lender shall give notice to Borrower prior to acceleration following Borrower’s breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section

18 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. *Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.*" (Defendants' RJN, filed 10/13/25, exh. 1, italics added, bold omitted.)

Defendants move for court approval of attorney fees that they intend to add to plaintiff's promissory note obligation. (Citing Civ. Code § 1717; *Chacker v. JPMorgan Chase Bank, N.A.* (2018) 27 Cal.App.5th 351, 359 (*Chacker*) [reversing order awarding attorney fees; remanding "for the entry of a new order authorizing this amount to be added to the outstanding balance plaintiff owes as the result of her default on the promissory note".]) The *Chacker* court reviewed a case with similarly situated parties and a functionally identical attorney fee clause in a deed of trust. The court interpreted the deed of trust to "permit attorney fees to be added to the borrower's promissory note obligation." (*Id.* at p. 357.) The court agrees that defendants are entitled to added reasonable attorney fees to plaintiff's promissory note obligation.

Turning to the reasonableness of the attorney fees requested in defendants' original moving papers, defendants request approval of \$42,854.50 in attorney fees. The request is supported by detailed fee invoices. (Exh. O to 10/13/25 Ghomashchi dec. ISO fee motion.) The court finds the attorneys' rates, which range from \$295 to \$425 per hour, to be well within the range of attorney fee rates for attorneys with similar experience. The court also finds the number of hours spent on this case to be reasonable. Among other things, plaintiff filed an unusually large number of ex parte applications in this matter. The vast majority of them were denied. Many repeated arguments that had been considered and rejected in previous applications. And all required responses from defendants' attorneys. The court will therefore approve the \$42,854.50 in attorney fees requested in defendants' original moving papers.

Plaintiff's arguments in opposition are unpersuasive. As already discussed, the court disagrees with plaintiff's argument that the claimed fees are unreasonable. Many of plaintiff's arguments attempt to reargue the merits of plaintiff's action, such as the argument that defendants do not hold the beneficial interest to the note. Those arguments are irrelevant to defendants' attorney fee motion, and are contradicted by the recorded documents of which the court has taken judicial notice. (See exh. 4 to defendants' 10/13/25 RJN ISO fee motion [corporate assignment of deed of trust to defendant U.S. Bank Trust National Association, not in its individual capacity but solely as Collateral Trust Trustee of Firstkey Master Funding 2021-A Collateral Trust].) Plaintiff argues defendants are judicially estopped from the claimed fees because their proof of claim in the federal court bankruptcy proceedings was limited to attorney fees totaling \$3,597.97. (Opposition, p. 7.) But the bankruptcy court's October 8, 2025 order granting relief from automatic stay authorizes a "motion for attorneys' fees and costs in California Superior Court for the County of Santa Clara, Case Number 25CV457167," without any limitation on the amount of fees claimed. (Exh. N to 10/13/25 Ghomashchi dec.

ISO fee motion.) The court takes judicial notice of that court record on its own motion. (Evid. Code, § 452, subd. (d).) Judicial estoppel does bar defendants' claim.

Defendants' motion that \$42,854.50 in attorney fees be added to the balance plaintiff owes as the result of her default on the promissory note is APPROVED. The court will prepare the order.

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